

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF ZINCHENKO AND OTHERS v. RUSSIA

(Applications nos. 47784/18 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

22 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Zinchenko and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 1 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also (except for the applicant in application no. 46493/21) raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. In particular, it reiterates that mere discontinuation of the administrative-offence proceedings in respect of the applicants, without acknowledgment and sufficient redress of violation of their conventional rights do not deprive them of a victim status (see *Grigoryev and Igamberdiyeva v. Russia* [Committee], no. 10970/12, §§ 21 and 23-25, 12 February 2019). Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65,

13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Grigoryev and Igamberdiyeva*, cited above, about inadequate redress for unlawful deprivation of liberty and for unjustified interference with the freedom of expression in the context of administrative-offence prosecution for participation in public events; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Glukhin v. Russia,* no. 11519/20, §§ 64-91, 4 July 2023, concerning unjustified processing of the applicant's personal biometric data by using highly intrusive facial recognition technology in administrative offence proceedings in order to identify, locate and arrest him; *Butkevich*, cited above, §§ 129-39, as to unjustified interference (measures in relation to media coverage of public assemblies) with the applicant's freedom of expression; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; *Mariya Alekhina and Others v. Russia*, no. 38004/12, §§ 197-201, 17 July 2018, and *Bouton v. France*, no. 22636/19, §§ 42-68, 13 October 2022, concerning restrictions of performance as a sign of protest; *Yartsev v. Russia*, no. 16683/17, §§ 28-38, 20 July 2021, related to the administrative conviction for waving banners with slogans that did not correspond to the declared aims of the public event; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. The applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022, and *Glukhin*, cited above, § 96), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 22 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	47784/18 27/09/2018	**Mariya Igorevna ZINCHENKO** 1990		Anticorruption rally Vladivostok 28/01/2018 Rally against pension reform Vladivostok 15/09/2018	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 administrative detention of 15 days	Primorye Regional Court 27/03/2018 Primorye Regional Court 16/01/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 10.50 a.m. to03.50 p.m. on 02/02/2018, - from 2.12 p.m. on 15/09/2018 to 2.10 p.m. on 17/09/2018, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Primorye Regional Court, 27/03/2018 and 16/01/2019, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	10432/21 28/01/2021	**Anton Pavlovich APTEKAR** 1997	Aksenova Darya Dmitriyevna Kolomna	Rally in support of Mr Kotov Moscow 22/02/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/07/2020	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to a police station for the purpose of drawing up a record of administrative offence from 5.00 p.m. to an unspecified time on 22/02/2020, 2) escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 a.m. to 3.15 p.m. on 31/01/2021,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
				Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 8 of CAO	community service of 40 hours	Moscow City Court 19/05/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 28/07/2020 and 19/05/2022.	
3.	13424/21 07/02/2021	**Dmitriy Aleksandrovich IVANOV** 1999		Rally in support of political prisoners Moscow 14/03/2020 Rally in support to Mr Navalnyy Moscow 23/01/2021 Rally in support of Mr Navalnyy Moscow 02/02/2021 Collective walkabout in support of Ilya Azarov and against Mr Putin	article 19.3 § 1 of CAO, article 20.2 § 8 of CAO article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO article 20.2 § 5 of CAO	fine of RUB 1,000 and administrative detention of 13 days fine of RUB 19,000 administrative detention of 30 days fine of RUB 20,000	Moscow City Court, 10/08/2020 and 07/08/2020 Moscow City Court 23/09/2021 Moscow City Court 10/02/2021 Moscow City Court 10/09/2020	Art. 5 (1) – 1) unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 3.15 to 10.10 p.m. on 14/03/2020, - from 4.30 p.m. on 08/06/2020 to 3.00 p.m. 09/06/2020, - from 11.00 p.m. on 01/08/2020 to 03/08/2020, - from 03.15 p.m. on 01/11/2020 to 02/11/2020, - from 11.30 p.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case, - from 11.50 p.m. on 04/03/2021 to 05/03/2021, hearing in the applicant's administrative-offence case, 2) unlawful escorting to the police station for the purpose of drawing up a record of administrative offence, from 6.30 p.m. to 8.50 p.m. on 05/06/2020, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 07/08/2020, 10/08/2020, 10/09/2020, 06/11/2020, 10/02/2021, 11/03/2021 (administrative conviction under article 19.3 § 1 to administrative detention of 10 days), and 23/09/2021, Art. 8 (2) - restrictions on the right to private life of participants in public assemblies - use of facial recognition technology for the	9,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
				Zvenigorodskoe Highway Moscow 05/06/2020				identification of the applicant as a participant of the rally on 23/01/2021 and his subsequent conviction (raised on appeal, final decision: Moscow City Court, 23/09/2021; complaint lodged on 23/03/2022), Art. 10 (1) - disproportionate measures against solo demonstrators - Solo picket in support of Ilya Azar in Moscow, 05/06/2020, administrative conviction under article 20.2 § 5 of the CAO, fine of RUB 20,000, final decision: Moscow City Court, 08/09/2020, Art. 10 (1) - measures in relation to media coverage of public assemblies - The applicant intended to cover, as a journalist, a picketing in support of "Novoye Velichiye" - entity declared as extremist organisation in Russia - on 01/11/2020. He was taken to the police station and then brought to administrative liability under article 19.3 § 1 of the CAO (disobedience) to administrative detention of 8 days. Final decision: Moscow City Court, 06/11/2020, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention of 10 days imposed on the applicant by the courts of first instance on 05/03/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same unauthorised rally on 14/03/2020: under art. 19.3 § 1 (fine) and under art. 20.2 § 5 (administrative detention) of the CAO.	

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
4.	21468/21 06/04/2021	**Denis Alevtinovich MAKGOLAKH** 1991	Timireva Olga Vladimirovna Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021 Forum of independent deputies "Municipal Russia" Moscow 13/03/2021	article 20.2 § 6.1 of CAO article 20.33 of CAO	administrative detention of 14 days fine of RUB 10,000	Moscow City Court 08/02/2021 Shatura Town Court of the Moscow Region 08/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - on an unspecified time on 31/01/2021, - on 13/03/2021 for 4 hours, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 08/02/2021, and Shatura Town Court, 08/06/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
5.	23408/21 11/04/2021	**Grigoriy Aleksandrovich TIFANYUK** 1993	Sozonov Ruslan Vladimirovich Nizhniy Novgorod	Rally in support to Mr Navalnyy Nizhniy Novgorod 23/01/2021	article 20.2 § 8 of CAO	administrative detention of 10 days	Nizhniy Novgorod Regional Court 31/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 5.00 p.m. to 8.30 p.m. on 21/08/2020, - from 23/01/2021 to 25/01/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Nizhniy Novgorod Regional Court, 21/10/2020 and 31/03/2021, Art. 10 (1) - conviction for making calls to participate in public events - Administrative conviction for having posted the	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								applicant's personal account page in the social network "VKontakte" a video calling up to take part in manifestations 21/08/2020 in support of Mr A. Navalnyy / Article 20.2 § 2 of the CAO / 20 hours of community works / Final decision: Nizhniy Novgorod Regional Court, 21/10/2020, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the administrative detention was enforced immediately after the decision of the first-instance court on account of the lack of suspensive effect of an appeal under the CAO.	
6.	26290/21 28/04/2021	**Fedor Fedorovich KOBZEV** 1964	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally in support of Mr Navalnyy Syktyvkar 23/01/2021 Rally in support of Mr Navalnyy Syktyvkar 31/01/2021	article 20.2 § 8 of CAO article 20.2 § 8 of CAO	fine of RUB 150,000 fine of RUB 150,000	Supreme Court of the Komi Republic 07/07/2021 Supreme Court of the Komi Republic 28/07/2021	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to the police station for the purpose of drawing up a record of administrative offence, from 3.05 p.m. on 09/08/2020 to an unspecified time, with no record of the applicant's escorting, 2) escorting to the police station for the purpose of drawing up a record of administrative offence detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. to 10.15 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Supreme Court of the Komi Republic, 28/10/2020, 25/11/2020, 07/07/2021 and 28/07/2021, Art. 10 (1) - disproportionate measures against solo demonstrators - On 09/08/2020 the applicant held a solo picketing against a candidate for governor of the Komi Republic in Syktyvkar, in the center place of the town. He was convicted twice: under Art. 20.2 § 5 of the CAO (participation in an unauthorised rally - fine of RUB 5,000), and under Art. 19.3 § 1 of the CAO (disobedience -	5,000

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								fine of RUB 500). Final decisions: Supreme Court of the Komi Republic, 28/10/2020 and 25/11/2020.	
7.	39209/21 28/07/2021	**Dmitriy Sergeyevich SHELOMENTSEV** 1993	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 15 days	Moscow City Court 09/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.17 p.m. on 02/02/2023 to 8.26 p.m. on 03/02/2023, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 09/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
8.	43268/21 09/08/2021	**Dzhamilya Iskandarovna YUSUPOVA** 1997	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr Navalnyy Tyumen 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tyumen Regional Court 03/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, from 1.00 p.m. to 3.40 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Tyumen Regional Court, 03/03/2021.	4,000
9.	45077/21 02/09/2021	**Vladimir Yuryevich DOROKHOV** 1985	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr Navalnyy Tula 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" from 12.20 p.m. to an unspecified time on 31/01/2021,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Tula Regional Court, 18/03/2021.	
10.	45349/21 11/08/2021	**Iskender Gabdrakhmanovich YASAVEYEV** 1971	Nurgaleyev Danil Ilnurovich Kazan	Rally in support of Mr Navalnyy Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 24/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 1.00 p.m. on 31/01/2021 to 2.00 p.m. on 01/02/2021, - from 4.12 p.m. on 27/02/2022 to 28/02/2022 in the afternoon, Art. 10 (1) - disproportionate measures against solo demonstrators - Picketing against the war in Ukraine, 27/02/2022, Kazan, administrative conviction under art. 20.2 § 8 of the CAO to an administrative detention of 5 days, final decision: Supreme Court of the Tatarstan Republic, 13/07/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in the proceedings under art. 20.2 § 8 of CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
11.	46352/21 02/09/2021	**Irina Sergeyevna FATYANOVA** 1989		Rally in support to Mr Navalnyy St Petersburg 23/01/2021	article 20.2 § 2 of CAO	administrative detention of 10 days	St Petersburg City Court 04/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 5.30 p.m. on 23/01/2021 to 24/01/2021, - from 2.10 p.m. on 13/04/2021 to 14/04/2021 in both cases the applicant was detained until the hearings in her administrative-offence cases,	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: St Petersburg City Court: 04/03/2021, 16/03/2021 and 18/05/2021, Art. 10 (1) - conviction for making calls to participate in public events - Administrative conviction for posting a call on a social network to participate in the protest in support of Mr A. Navalnyy scheduled in St Petersburg: 1) on 23/01/2021 / Article 20.2. § 2 of the CAO / administrative detention for 6 days / final decision: St Petersburg City Court, 16/03/2021 2) on 31/01/2021 / Article 20.2. § 2 of the CAO / administrative detention for 10 days / final decision: St Petersburg City Court,18/05/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention (6 and 10 days) imposed on the applicant were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
12.	46493/21 04/09/2021	**Mikhail Olegovich ALEKSEYEV** 1990	Bubon Konstantin Vladimirovich Khabarovsk	Rally in support of Mr Navalnyy Khabarovsk 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 10/03/2021		3,500

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13.	47071/21 03/09/2021	**Nadezhda Nikolayevna SHESTAKOVA** 1956	Tiunov Sergey Yuryevich Yekaterinburg	Rally in support of Mr Navalnyy Yekaterinburg 31/01/2021 Rally against the was in Ukraine Yekaterinburg 24/02/2022	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	community works of 20 hours administrative detention of 25 days	Sverdlovsk Regional Court 25/05/2021 Sverdlovsk Regional Court, 02/03/2022, received by the applicant on 10/03/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.15 p.m. on 24/02/2022 to 25/02/2022, hearing in the applicant's administrative offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Sverdlovsk Regional Court, 25/05/2021 and 02/03/2022.	6,000
14.	47148/21 07/09/2021	**Aleksandr Andreyevich MARKIN** 1999	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Bryansk 23/01/2021	article 20.2 § 6.1 of CAO, article 20.2 § 5 of CAO	fines of RUB 1,500 and 10,000	Bryansk Regional Court 18/03/2021 and 30/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.12 p.m. on 23/01/2021 to 00.47 a.m. on 24/01/2021.	4,000
15.	49242/21 30/09/2021	**Yegor Denisovich TOKHTOBIN** 2002		Rally in support of Mr Navalnyy Moscow 31/01/2021 Rally against the war in Ukraine Moscow 13/03/2022	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	administrative detention of 7 days administrative detention of 15 days (the applicant was detained 11 days, till	Moscow City Court 20/04/2021 Moscow City Court 24/03/2022	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 3.40 p.m. on 31/01/2021 to 4.40 p.m. on 01/02/2021, - from 3.00 p.m. on 13/03/2022 to 1.30 p.m. on 14/03/2022 (both times, until the hearings in the applicant's administrative-offence cases), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence	6,000

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						24/03/2022 when the appeal court exempted him from the penalty)		proceedings - final decisions: Moscow City Court, 20/04/2021 and 24/03/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the administrative detention imposed on the applicant on 14/03/2022 was enforced immediately after the decision of the first-instance court on account of the lack of suspensive effect of an appeal under the CAO.	
16.	49500/21 22/09/2021	**Dmitriy Yuryevich MALININ** 1983		Rally in support of Mr Navalnyy Kaliningrad 23/01/2021 Rally in support of Mr Navalnyy Kaliningrad 31/01/2021 Rally in support of Mr Navalnyy Kaliningrad 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO article 20.2 § 8 of CAO	community works of 20 hours fine of RUB 10,000 fine of RUB 200,000	Kaliningrad Regional Court 23/03/2021 Kaliningrad Regional Court 01/06/2021 Kaliningrad Regional Court 29/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 4.20 p.m. to 9.20 p.m. on 23/01/2021, - from 3.10 p.m. on 18/05/2021 to an unspecified time on the same day, when the applicant was brought to the trial court, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Kaliningrad Regional Court, 23/03/2021 and 01/06/2021.	6,000
17.	49632/21 14/09/2021	**Vadim Leonidovich KOBZEV** 1997	Bochilo Anna Yevgenyevna Barnaul	Rally in support of Mr Navalnyy Rostov-on-Don 21/04/2021	article 20.1 § 2 of CAO	administrative detention of 13 days	Rostov Regional Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.00 p.m. on 20/04/2021 (the day before the	5,000

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								scheduled rally) to 21/04/2021, hearing in the applicant's administrative-offence case of petty hooliganism, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Rostov Regional Court, 28/04/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
18.	56424/21 28/10/2021	**Ilya Gennadyevich POGNERYBKO** 1994		Rally in support of Mr Navalnyy Rostov-on-Don 21/04/2021	article 20.2 § 6.1 of CAO	administrative detention of 9 days	Rostov Regional Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 a.m. on 08/05/2022 to 10.30 a.m. on 10/05/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Rostov Regional Court, 28/04/2022 and 11/07/2022, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentences of administrative detention imposed on the applicant on 22/04/2021 and 10/05/2022 were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
19.	56623/21 21/10/2021	**Ernest Aleksandrovich MEZAK** 1976	Laptev Aleksey Nikolayevich Moscow	Rally in support of Mr Navalnyy Syktyvkar 23/01/2021 Rally in support of Mr Navalnyy Syktyvkar 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO, article 19.3 § 1 of CAO	fine of RUB 10,000 fine of RUB 17,000, administrative detention of 12 days	Supreme Court of the Komi Republic 16/06/2021 Supreme Court of the Komi Republic, 21/04/2021 and 02/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 12.25 p.m. to 11.30 p.m. on 31/01/2021, - from 4.50 a.m. to 3.30 p.m. on 10/03/2021 (in an administrative-offence case related to the applicant's alleged disobedience on 31/01/2021), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Supreme Court of the Komi Republic, 21/04/2021, 02/06/2021, 16/06/2021 and 15/12/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentences of administrative detention imposed on the applicant by the court of first instance on 10/03/2021 (upheld on 02/06/2021) and 19/03/2021 (upheld on 15/12/2021) were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The applicant was convicted twice for participating in the same public rally on 31/01/2021: under art. 19.3 § 1 and under art. 20.2 § 5 of the CAO (raised on appeal).	5,000

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20.	57204/21 29/10/2021	**Alina Sergeyevna IVANOVA** 1996	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of Mr Navalnyy Moscow 31/07/2018	article 20.2 § 5 of CAO	After having been taken to the police station, the applicant was not brought to liability as the District Court returned the case to the police, then the case became time barred. The applicant lodged a civil compensation suit, which was dismissed	Single judge of the Supreme Court of Russia 04/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence: - from 7.00 p.m. to 11.00 p.m. on 31/07/2018 (detention in excess of 3 hours and without "exceptional circumstances"), - from 5.15 p.m. on 23/01/2021 to an unspecified time, - from 6.20 p.m. on 31/01/2021 to an unspecified time, - on an unspecified time on 09/08/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 29/06/2021, 21/07/2021 and 07/09/2021, Art. 10 (1) - various restrictions on the right to freedom of expression - On 07/08/2021, the applicant took part in a spontaneous solo performance – lowered her pants in front of the police department in Arbat District in Moscow. The purpose of her actions was to express her disagreement with an earlier arrest of 2 residents of Yekaterinburg for the same actions. She was arrested on 09/08/2021. The police officers drew up an administrative offence record under Art. 20.1(1) – petty hooliganism. The applicant was sentenced to 3 days of administrative detention. Final decision: Moscow City Court, 07/09/2021.	5,000
				Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/06/2021		
				Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/07/2021		

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21.	57907/21 26/10/2021	**Sergey Arlenovich ZYKOV** 1972	Kachanov Roman Yevgenyevich Yekaterinburg	Rally in support of Mr Navalnyy Yekaterinburg 23/01/2021 Rally in support of Mr Navalnyy Yekaterinburg 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	community works of 30 hours community works of 35 hours	Sverdlovsk Regional Court 23/06/2021 Sverdlovsk Regional Court 23/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.10 p.m. on 21/04/2021 to 9.30 a.m. on 22/04/2021 (hearing in the applicant's administrative-offence case), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Sverdlovsk Regional Court, 23/06/2021 (two decisions), 27/04/2021 and 07/05/2021, Art. 10 (1) - conviction for making calls to participate in public events - Administrative conviction: 1) for a post on Facebook calling upon public to participate in public rallies in support of Mr A. Navalnyy / Article 20.2 § 2 of the CAO / administrative detention of 9 days / final decision: Sverdlovsk Regional Court on 27/04/2021. 2) for having been given flyers encouraging to participate in public rallies in support of Mr A. Navalnyy / Article 19.3 § 1 of the CAO / administrative detention of 15 days / final decision: Sverdlovsk Regional Court, 07/05/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant by the courts of first instance were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	6,000

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22.	45469/22 26/08/2022	**Zulfiya Mudarisovna SITDIKOVA** 1976	Sabirov Rim Faridovich Kazan	Rally against the war in Ukraine Kazan 06/03/2022	article 20.2 § 2 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 27/04/2022	Art. 5 (1) - unlawful deprivation of liberty: 1) escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": - from 2.05 p.m. on 06/03/2022 to 08/03/2022, hearing in the applicant's administrative-offence case, - from 7.10 p.m. on 06/07/2022 to 08/07/2022, hearing in the applicant's administrative-offence case under art. 19.3 of the CAO (disobedience; no link with any particular rally), 2) unlawful escorting to the police station for the same purpose, from 9.30 p.m. to 11.50 p.m. on 14/06/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Supreme Court of the Tatarstan Republic, 27/04/2022, 27/07/2022 and 24/08/2022, Art. 10 (1) - conviction for the display of slogans/banners/other symbols by participants in public events - The applicant was arrested on 14/06/2022, during a rock-concert in Kazan, for wearing a shirt with "No war" sign. An administrative offence record was drawn up in respect of the applicant under art. 20.3.3 of the CAO (administrative offence of "publicly discrediting the use of Russian military forces for upholding international peace and security"). On 22/07/2022 the Novo-Savinovkiy District Court of Kazan convicted the applicant thereunder and sentenced her to a fine of RUB 40,000. Final decision: Supreme Court of the Tatarstan Republic, 24/08/2022. Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant by the court of first instance on 08/07/2022, under art. 19.3 of the	5,000

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								CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	

[1] Plus any tax that may be chargeable to the applicants.